

26SMCV02078 26SMCV02078

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-06-26

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C06%2F26%2F2026

Source SHA-256: 54ca8e8bdc0884283d003d6b8a39b7d7f5b57808b79000cc15fb0d7955b1e8ca

Case Number: 26SMCV02078 Hearing Date: June 26, 2026 Dept: N

TENTATIVE RULING

Defendants Matthew Mayne and Sofia Grant's Special Motion to Strike Complaint Pursuant to Code of Civil Procedure section 425.16 (Anti-SLAPP) is GRANTED.

Defendants Matthew Mayne and Sofia Grant shall prepare, serve, and submit a proposed judgment as per statute.

Defendants Matthew Mayne and Sofia Grant to give notice.

First Prong: Claim Arising from Protected Activity

To invoke Code of Civil Procedure section 425.16, a defendant need only demonstrate that a suit arises from the defendant's exercise of free speech or petition rights. (See Code Civ. Proc., § 425.16, subd. (b); *City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78.) This is determined by "the gravamen or principal thrust of the action." (See *In re Episcopal Church Cases* (2009) 45 Cal.4th 467, 477.) "In the anti-SLAPP context, the critical point is whether the plaintiff's cause of action itself was based on an act in furtherance of the defendant's right of petition or free speech." (*City of Cotati v. Cashman*, supra, 29 Cal.4th at p. 78.) "In making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." (Code Civ. Proc., § 425.16, subd. (b)(2).)

Code of Civil Procedure section 425.16, subdivision (e)(1), states that "any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law" or "any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law" is considered protected activity under the anti-SLAPP statute.

In the complaint, Plaintiff takes issue with Defendant Mayne's submission of a false declaration to the court in support of a conservatorship petition (Compl. ¶ 76), and it is clear that submission of a declaration to the court falls under the description of a writing "made before a . . . judicial proceeding" or "made in connection with an issue under consideration or review by a . . . judicial body." Plaintiff also brings this action based on Mayne's endorsement of allegations and lending credibility to a petition for conservatorship and assistance with a conservatorship petition (*ibid.*), which also constitutes protected activity. There are no specific allegations against Defendant Grant (see Compl. ¶ 9), such that the Court must conclude that this claim, too, arises from protected activity. In opposition, Plaintiff contends that the gravamen of the claim is the unlawful deprivation of an elder's property, i.e., a financial taking, but there is no allegation of a taking in the complaint. It is clear from the complaint that Plaintiff's claim for elder abuse, the one actually alleged in the complaint, would not arise without the alleged submission of a declaration connected to the conservatorship petition. Put simply, the allegations are not background, as Plaintiff argues; they are the basis of the alleged claim. Therefore, the Court finds that Defendants have

satisfied the first prong of the anti-SLAPP statute as to Plaintiff's claims, as Plaintiff's claim arises from protected activity.

Second Prong: Plaintiff's Likelihood of Prevailing on the Merits

If the defendant makes a threshold showing that the challenged cause of action is one arising from protected activity, the burden shifts to the plaintiff to establish a likelihood of prevailing on the complaint. (See Code Civ. Proc., § 425.16, subd. (b)(1).) "In order to establish a probability of prevailing on the claim, a plaintiff responding to an anti-SLAPP motion must state and substantiate a legally sufficient claim." (Wilson v. Parker, Covert & Chidester (2002) 28 Cal.4th 811, 821, superseded by statute on other grounds as noted in Hutton v. Hafif (2007) 150 Cal.App.4th 527, 547, citation, quotation marks, and brackets omitted.) To do so, "the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited." (Ibid., quotation marks omitted.) In considering whether a plaintiff's claim has merit, "the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant," and while "the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim." (Ibid., emphasis in original.)

Civil Code section 47, subdivision (b), makes privileged any statements made during judicial proceedings, which "applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) Such communications are protected by the litigation privilege for "all torts except malicious prosecution." (Ibid.) As stated above, the complaint makes clear that Plaintiff takes issue with conduct relating to a conservatorship petition, and the conduct at issue occurred as part of the litigation process in regards to that petition. It follows that the claims are barred by the litigation privilege, and the Court need not determine whether Plaintiff may otherwise be able to prove his claims. Accordingly, Defendants Matthew Mayne and Sofia Grant's Special Motion to Strike Complaint Pursuant to Code of Civil Procedure section 425.16 (Anti-SLAPP) is GRANTED. Defendants Matthew Mayne and Sofia Grant shall prepare, serve, and submit a proposed judgment as per statute.

Attorney Fees

Code of Civil Procedure section 425.16, subdivision (c), provides that "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." Under section 425.16, an award of fees and costs is mandatory. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1131.) In that Defendants are the prevailing parties, they are entitled to their reasonable attorney fees and costs, the amount of which shall be determined upon Defendants filing a noticed motion for attorney fees and memorandum of costs.